



IRAN TRANSITIONAL LEGAL RISK FRAMEWORK™

Sanctions and Legal Risk Exposure Assessment Framework

A White Paper On Legal Risk And Foreign Investment Strategy In Iran Under Conditions Of Political Transition And
Regulatory Change.

Mostapha Maddahinasab, Ph.D.

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DISCLAIMER

This white paper is provided solely for informational and analytical purposes. It does not constitute legal advice, investment advice, financial advice, sanctions compliance advice, or any form of professional advisory opinion regarding specific transactions, jurisdictions, or investment decisions.

The analysis presented herein reflects general legal and institutional risk considerations associated with foreign market entry into transitional environments and should not be interpreted as predictive assessments of political developments, sanctions outcomes, regulatory reforms, or market conditions.

Any prospective investment activity involving Iran or other sanctioned or transitional jurisdictions requires independent legal, regulatory, financial, and sanctions-related due diligence conducted by qualified professionals within the relevant jurisdictions.

While reasonable efforts have been made to ensure analytical accuracy and methodological consistency, no representation or warranty is made regarding the completeness, reliability, or future applicability of the information contained in this publication.

References to sanctions regimes, political transition scenarios, institutional volatility, or market reopening conditions are discussed exclusively within an academic and analytical framework intended to evaluate legal risk exposure and investment structuring considerations.

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1. Executive Summary

1.1 Context

Iran represents a high-potential emerging market situated at a moment of structural transition. Political transformation—particularly when systemic—frequently generates temporary institutional instability, legal discontinuity, and regulatory recalibration.

While transitional phases may unlock substantial economic opportunity, they also introduce elevated uncertainty across governance, enforcement, and asset legitimacy frameworks. In capital-intensive sectors such as energy, infrastructure, and industrial manufacturing, these uncertainties materially affect risk pricing and investment structuring.

1.2 Core Legal Risk

Foreign investors entering transitional environments such as Iran, face concentrated exposure in several critical domains:

- Property and concession title legitimacy
- Corporate legacy liabilities and governance recalibration
- Regulatory reversal and retroactive reform risk
- Judicial restructuring and enforcement unpredictability
- Sanctions residual and compliance friction

These risk vectors do not operate in isolation. They interact, amplify one another, and directly influence capital allocation decisions, financing conditions, and asset valuation.¹

1.3 Framework Proposal

This paper introduces **Iran Transitional Legal Risk Framework™**, a structured, multi-dimensional legal risk assessment model designed to translate transitional uncertainty into measurable and actionable indicators.

The Framework evaluates investment exposure across five core dimensions:

- Institutional Stability
- Regulatory Volatility
- Title Certainty

¹ Anton Korinek, *Systemic risk: Amplification effects, externalities, and policy responses*, 2009)

- Enforcement Predictability
- Legacy Exposure

By applying a weighted scoring methodology, the model provides investors with a disciplined tool for calibrating exposure, structuring entry, and aligning capital deployment with institutional stabilization.

The analytical framework presented in this paper is particularly relevant for foreign market entrants, including mid-sized industrial firms, strategic investors and commercial operators seeking disciplined legal risk assessment in environments characterized by institutional transition and regulatory uncertainty.

1.4 Strategic Implication

Transitional markets reward structured entry rather than speculative acceleration.²

Investors who institutionalize rigorous legal due diligence at the earliest stages of market engagement—grounded in institutional analysis and structured risk mapping—can reduce downside exposure while preserving strategic optionality.³

In environments characterized by systemic transformation, disciplined legal architecture becomes a competitive advantage.⁴

1.5 Purpose and Intended Audience

This paper is intended to support foreign businesses evaluating early-stage market entry into Iran under conditions of political or regulatory transition. While institutional investors may possess extensive internal compliance infrastructures, many prospective market participants—particularly mid-market enterprises and specialized commercial operators—require structured external frameworks for assessing legal uncertainty, institutional continuity, and transactional exposure.

Moreover, prospective pathways for foreign market participation may differ substantially depending on the evolution of sanctions regimes and the broader trajectory of political and regulatory change. In scenarios involving partial sanctions relief or market reopening, early-stage

² Katrijn Gielens and Marnik G Dekimpe, 'The entry strategy of retail firms into transition economies' (2007) 71 Journal of Marketing 196

³ Damilola S Olawuyi, 'Legal strategies and tools for mitigating legal risks associated with oil and gas investments in Africa' (2015) 39 OPEC Energy Review 247 and also Jose Parejo, 'When Geopolitics Enters the Boardroom: Strategic Intelligence and Corporate Decision-Making in Complex Jurisdictions' (2026) Available at SSRN 6432202

⁴ Constance E Bagley, 'What's Law got to do with it: A Systems Approach to Management' (2006)

market entry may prove comparatively more accessible for mid-sized enterprises and specialized commercial operators capable of phased capital deployment and targeted sectoral engagement.

Conversely, in circumstances where sanctions remain partially operative or only selectively eased, investment activity may continue to emerge primarily from jurisdictions and commercial actors with comparatively limited exposure to United States secondary sanctions. In such contexts, structured legal due diligence, sanctions-sensitive transaction design, and regulatory risk assessment become particularly important for investors seeking disciplined exposure to the Iranian market under conditions of continued uncertainty.

2. Political Transition and Legal Discontinuity

Periods of political transition create profound uncertainty for legal and regulatory systems. While political transformation may aim to restore legitimacy and institutional stability, the interim phase often generates heightened legal risk, particularly in sectors characterized by long-term capital commitments such as energy and infrastructure.⁵

Investors, lenders, and operators are primarily concerned with the continuity of enforceable rights. During systemic transition, the central question is not merely political change, but whether legal commitments survive that change.

Understanding the dynamics of institutional instability, potential legal nullification, and comparative transitional experience is therefore essential to assessing post-transition regulatory risk.

2.1 Institutional Instability and Continuity of Law

Political transition frequently disrupts the institutional architecture responsible for law-making, adjudication, and enforcement. Ministries may be restructured, regulatory agencies dissolved or merged, and judicial authority recalibrated. However, the continuity of law does not depend solely on the survival of institutions; it depends on the recognition of legal commitments as binding across regimes.

Key questions arise:

- Will existing contracts be honored?
- Will regulatory approvals remain valid?
- Will administrative decisions be reviewed or suspended?
- Will the judiciary maintain independence and procedural consistency?

In transitional settings, instability often emerges not from formal repeal of law, but from administrative paralysis and inconsistent enforcement. Even without explicit nullification, regulatory uncertainty can generate effective discontinuity.⁶

⁵ Idara Andy, 'Legal risk management in energy infrastructure projects involving public-private partnerships and long-term financing structures models' (2025) 5 International Journal of Law, Justice and Jurisprudence 569

⁶ Irina Levina and others, 'Uncertainty as a factor in investment decisions: the case of the Russian Federation's regions' (2016) World Bank Policy Research Working Paper

For capital-intensive sectors such as energy, where investment horizons extend decades, even temporary institutional disruption may materially affect risk calculations.⁷

A credible transition framework must therefore articulate principles of legal continuity early in the process, signaling that lawful commitments will not be arbitrarily disregarded.

2.2 Legal Nullification and Retroactive Reform Risk

One of the most acute risks during political transition is the potential for retroactive reform.

New authorities may seek to:

- Invalidate prior concessions
- Renegotiate production-sharing agreements
- Reassess privatizations
- Investigate past licensing decisions
- Introduce retrospective tax or compliance obligations

While accountability and anti-corruption measures may be legitimate policy objectives, broad or politically motivated nullification creates systemic risk.

Retroactive reform undermines:

- Legal certainty
- Contractual reliability
- Access to international financing
- Sovereign credibility in capital markets

The distinction between targeted corrective reform and generalized legal repudiation is critical.

International experience demonstrates that transitions perceived as vindictive or legally unpredictable tend to experience prolonged capital flight, increased borrowing costs, and arbitration exposure under bilateral investment treaties.⁸

Establishing clear transitional safeguards — including respect for vested rights, due process guarantees, and structured review mechanisms — can significantly reduce investor anxiety.

⁷ Matteo Di Castelnuovo and Andrea Biancardi, 'The future of energy infrastructure: Challenges and opportunities arising from the R-evolution of the energy sector' (2020) Disruption in the Infrastructure Sector: Challenges and Opportunities for Developers, Investors and Asset Managers 5

⁸ Andrzej Baniak and others, 'On the determinants of foreign direct investment in transition economies' (2005) 48 Problems of economic transition 6

2.3 Comparative Transitional Experiences

Comparative experience offers important insights into how transitional states have managed legal continuity.

In post-authoritarian and post-socialist transitions across Central and Eastern Europe, governments faced the dual challenge of restructuring state-controlled sectors while maintaining credibility with international investors. Gradual reform, coupled with formal reaffirmation of contractual obligations, contributed to more stable investment climates.⁹

Conversely, transitions characterized by abrupt nationalization, sweeping nullification of prior contracts, or politicized judicial reform frequently triggered prolonged disputes and arbitration claims.¹⁰

Lessons emerging from comparative cases include:

- Early declaration of contractual continuity reduces speculation.
- Transparent review mechanisms are preferable to blanket annulment.
- Judicial independence is central to investor reassurance.
- Sequenced regulatory reform is more effective than immediate systemic overhaul.
- Engagement with international financial institutions can stabilize expectations.

For any transitioning energy market, the strategic objective is to balance legitimate structural reform with preservation of legal reliability.

The credibility of the new legal order will depend less on rhetoric and more on the consistency with which it treats inherited obligations.

⁹ Katharina Pistor, 'Patterns of legal change: shareholder and creditor rights in transition economies' (2000) 1 European Business Organization Law Review (EBOR) 59

¹⁰ Jonathan Bonnitcha, 'Investment treaties and transition from authoritarian rule' (2014) 15 the journal of world investment & trade 965

3. Structural Legal Risk Domains

Political transition produces layered legal risk that directly affects capital allocation decisions. In energy and infrastructure sectors—where investment horizons extend 15–30 years—legal uncertainty is priced into financing costs, equity participation, and sovereign risk assessment.

The following structural domains represent the principal legal risk vectors that influence investor behavior during systemic transition.

3.1 Institutional Continuity Risk

Institutional continuity is the foundational variable in post-transition investment environments.

The critical issue is not merely whether statutory law remains formally intact, but whether regulatory bodies retain operational authority, administrative capacity, and procedural coherence.

During political restructuring, ministries may be dissolved or consolidated, licensing agencies reconstituted, and oversight mandates redistributed. Even where reform is orderly, interim fragmentation often produces jurisdictional ambiguity. Investors face uncertainty as to which authority has binding competence to issue permits, approve transfers, or confirm regulatory compliance.

From a financing perspective, institutional instability translates into timeline risk. Project finance models depend upon predictable sequencing of regulatory approvals. Where authority is unclear or decision-making stalls, capital deployment is delayed, internal rate of return projections are disrupted, and cost of capital increases.

For long-cycle energy investments, administrative discontinuity may be as material as statutory change. Investors will price institutional reliability into risk premiums accordingly.¹¹

3.2 Title and Asset Legitimacy Risk

Asset legitimacy is the bedrock of bankability. Without clarity of title and concession rights, financing structures become fragile.

In transitional environments, governments frequently initiate review processes concerning prior privatizations, concessions, land allocations, or state-affiliated asset transfers. While corrective reform may be justified, broad reassessment of ownership structures creates uncertainty around the durability of acquired rights.¹²

¹¹ Aymo Brunetti, Gregory Kisunko and Beatrice Weder, *Institutions in transition: reliability of rules and economic performance in former socialist countries*, vol 9708 (World Bank Publications 1997)

¹² Louis Skyner, 'Political conflict and legal uncertainty: the privatisation of land ownership in Russia' (2001) 53 Europe-Asia Studies 981

Risk formation may arise through:

- Revalidation requirements for land or subsoil rights
- Challenges to historical transfers involving politically affiliated entities
- Overlapping claims between state, quasi-state foundations, and private actors
- Retroactive scrutiny of licensing decisions

For investors, even the perception of potential title instability can impair asset valuation. Lenders may discount collateral, insurers may adjust risk ratings, and due diligence cycles may lengthen substantially.

Where asset legitimacy becomes contestable, liquidity diminishes and transaction velocity slows. In capital markets terms, this is a direct constraint on asset monetization.

3.3 Corporate Legacy Risk

Corporate legacy risk concerns inherited liabilities and governance exposure embedded in pre-transition structures.

Energy sectors in politically centralized systems often feature joint ventures, state-linked enterprises, or entities affiliated with political or military institutions. Following transition, these networks may be subject to investigation, restructuring, or dissolution.¹³

For investors, the key concern is not political accountability per se, but exposure to:

- Retrospective compliance audits
- Anti-corruption investigations
- Contract renegotiation pressures
- Reputational association with sanctioned or politically sensitive actors

This risk directly affects valuation and exit strategy. Acquiring or partnering with legacy entities may require restructuring, enhanced disclosure, or governance recalibration to align with new regulatory standards.

Private equity and strategic investors will incorporate corporate legacy risk into acquisition pricing and indemnity structuring. Where exposure is ambiguous, transaction appetite declines.

¹³ Uwe Böwer, 'State-owned enterprises in emerging Europe: The good, the bad, and the ugly' (2017)

3.4 Enforcement and Judiciary Volatility

Even where contracts remain formally valid, their value depends upon enforceability.

Political transition frequently involves judicial reform, replacement of senior judges, modification of procedural codes, and recalibration of court jurisdiction. While such reform may aim at strengthening rule of law, transitional volatility can temporarily undermine predictability.

For investors, enforcement uncertainty affects:

- Contract enforcement timelines
- Credibility of security interests
- Reliability of dispute resolution outcomes
- Recognition of arbitral awards

Where domestic adjudication is perceived as unstable, investors will increasingly rely on international arbitration mechanisms. However, arbitration itself presupposes state compliance with enforcement conventions and respect for arbitral awards.

Judicial volatility therefore influences not only litigation risk, but sovereign credibility in international capital markets. Persistent unpredictability raises risk premiums and may constrain cross-border financing.

3.5 Sanctions Residual Risk

Even in the event of political normalization, sanctions legacy risk does not disappear immediately.

Financial institutions, insurers, and multinational counterparties operate within compliance ecosystems that are slow to recalibrate. Complex sanctions-compliant ownership structures, legacy blacklisted entities, and unresolved secondary sanctions exposure can persist beyond formal policy shifts.

For investors, residual sanctions risk manifests in:

- Restricted banking access
- Heightened compliance screening
- Delayed financial settlements
- Insurance and reinsurance limitations
- Elevated transaction costs

Capital markets respond cautiously to post-sanctions environments. Normalization is gradual, and reintegration into global financial systems requires regulatory transparency, institutional credibility, and sustained diplomatic stability.

Until such recalibration is complete, sanctions residual risk functions as a frictional constraint on capital inflow.

4. Iran Transitional Legal Risk Framework™

Political transitions require structured risk calibration rather than intuitive assessment. The Iran Transitional Legal Risk Framework™ is designed as a capital-oriented analytical model that translates legal uncertainty into measurable investment risk indicators.

The framework provides a disciplined method for evaluating transactional exposure in transitional environments, particularly in capital-intensive sectors.

It is not a predictive model. It is a structured decision-support tool.

4.1 Methodology

The Framework evaluates investment exposure across five core legal dimensions that materially influence capital deployment, financing cost, and asset durability.

Each dimension is assessed on a 0–10 scale:

0 = negligible structural risk

10 = severe structural instability

Each dimension is weighted to reflect its relative impact on capital preservation and enforceability.

The weighted scores are aggregated to produce a Composite Risk Score (0–10), which functions as a strategic risk indicator for investment structuring decisions.

The model is designed to:

- Support pre-transaction due diligence
- Inform pricing adjustments
- Guide structuring and contractual safeguards
- Identify mitigation priorities.

4.2 Risk Dimensions

The Framework incorporates the following dimensions:

RISK DIMENSION	SCORE (0–10)	WEIGHT	WEIGHTED SCORE
Institutional Stability			
Regulatory Volatility			
Title Certainty			
Enforcement Predictability			
Legacy Exposure			

Composite Risk Score: ____ / 10

Dimension Definitions and Weighting Logic

Institutional Stability

Assesses operational continuity of ministries, regulatory agencies, and licensing bodies.

High weight due to its impact on administrative timelines and approval validity.

Regulatory Volatility

Evaluates likelihood of rapid statutory amendment, policy reversal, or retroactive reform.

Directly affects compliance modeling and financial forecasting.

Title Certainty

Measures clarity and defensibility of ownership, concession, and asset rights.

Critical for collateral valuation and project finance bankability.

Enforcement Predictability

Assesses reliability, independence, and procedural efficiency of courts and enforcement authorities.

Determines effective value of contractual protections.

Legacy Exposure

Evaluates inherited political, sanctions, or governance risks embedded in counterparties or asset history.

Material to reputational exposure and post-acquisition restructuring.

Weights may vary by sector (e.g., energy vs. manufacturing), but enforcement and title certainty typically carry higher structural impact in capital-intensive projects.

4.3 Hypothetical Case Study

Scenario

A European small-to-medium enterprise (SME) seeks to acquire a 30% minority stake in an Iranian manufacturing company operating in the industrial equipment sector, three months after political transition.

The target company:

- Holds land allocated under the previous administration
- Maintains contracts with state-linked entities
- Operates under sectoral regulations currently under review
- Has no known international arbitration exposure

Step 1 — Scoring Assessment (Illustrative)

Risk Dimension	Score (0–10)	Weight	Weighted Score
Institutional Stability	6	0.25	1.50
Regulatory Volatility	7	0.20	1.40
Title Certainty	5	0.25	1.25
Enforcement Predictability	6	0.20	1.20
Legacy Exposure	4	0.10	0.40

Composite Risk Score: 5.75 / 10

Step 2 — Interpretation

A composite score of 5.75 indicates moderate-to-elevated transitional risk.

Implications for the investor:

- Pricing adjustment reflecting transitional uncertainty
- Enhanced representations and warranties
- Conditional closing tied to regulatory confirmation
- Escrow or deferred payment mechanisms
- Expanded due diligence on land title verification
- Exit clauses triggered by regulatory reversal

The model does not prohibit investment. It informs structuring discipline.

Scoring Logic

Scores are derived from:

- Institutional observation
- Regulatory review
- Publicly available reform signals
- Counterparty exposure mapping
- Comparative transitional benchmarks

The objective is to transform qualitative legal uncertainty into structured investment decision parameters.

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5. Strategic Entry Design Under Transitional Uncertainty

Legal risk in transitional environments cannot be eliminated. It can, however, be structured, sequenced, and priced.

The objective of strategic entry design is not to avoid exposure entirely, but to align capital deployment with institutional stabilization curves. Investors who calibrate entry timing and contractual architecture appropriately can convert volatility into opportunity while preserving downside protection.

The following structuring mechanisms are particularly relevant in transitional markets.

5.1 Staged Capital Deployment

In periods of institutional recalibration, immediate full-scale capital commitment amplifies exposure to regulatory discontinuity and enforcement uncertainty.

A phased investment model allows capital allocation to track stabilization milestones.¹⁴

Common approaches include:

- Minority initial entry with call options for increased equity
- Convertible instruments triggered upon regulatory confirmation
- Capital tranches released upon defined compliance benchmarks
- Joint venture structures with performance-linked capital injections

From a financial perspective, staged deployment:

- Preserves optionality
- Reduces sunk-cost exposure
- Aligns capital at risk with observable institutional performance
- Enhances internal risk committee approval likelihood

Transitional environments reward investors who sequence commitment rather than front-load exposure.

5.2 Conditional Contract Structures

Contractual architecture is the primary defensive layer in uncertain legal systems.

¹⁴ Elizabeth Olmsted Teisberg, 'Capital investment strategies under uncertain regulation' (1993) *The RAND Journal of Economics* 591

Share Purchase Agreements (SPAs), Joint Venture Agreements, and Asset Transfer Agreements should incorporate milestone-based conditionality tied to regulatory, judicial, and compliance triggers.¹⁵

Mechanisms may include:

- Deferred closing pending regulatory ratification
- Escrow arrangements securing part of the purchase price
- Earn-out structures linked to post-transition performance stability
- Material Adverse Change (MAC) clauses tailored to regulatory shifts
- Termination rights triggered by legislative nullification

These instruments translate macro-level uncertainty into structured contractual safeguards.

Well-designed conditionality does not signal distrust; it signals disciplined capital governance.

5.3 Arbitration and Jurisdiction Strategy

In transitional contexts, enforcement predictability may lag behind formal legal reform. For this reason, jurisdictional planning becomes central to risk containment.

Investors should assess:

- Availability of international arbitration under investment treaties
- Recognition and enforcement mechanisms under the New York Convention
- Suitability of offshore arbitration seats (e.g., neutral European jurisdictions)
- Governing law clauses insulated from domestic statutory volatility

International arbitration does not eliminate risk, but it externalizes dispute resolution from potentially unstable domestic judicial environments.¹⁶

The presence of credible external enforcement mechanisms can materially influence financing terms and lender comfort.

Jurisdictional architecture is therefore not a technical afterthought — it is a capital structuring variable.

¹⁵ Jeongho Choi, Andres Velez-Calle and Farok J Contractor, 'International joint venture governance mechanisms: the role of institutional environment on contract design' (2025) 33 Corporate Governance: An International Review 370

¹⁶ Mark Fathi Massoud, 'International arbitration and judicial politics in authoritarian states' (2014) 39 Law & Social Inquiry 1

5.4 Political Risk Insurance

Political Risk Insurance (PRI) functions as a supplementary mitigation layer rather than a standalone solution.¹⁷

Coverage may address:

- Expropriation
- Currency inconvertibility
- Political violence
- Breach of contract by state entities

Multilateral institutions, export credit agencies, and private insurers may provide coverage depending on post-transition diplomatic normalization.

However, insurance pricing reflects structural assessment of institutional credibility. Therefore, PRI is most effective when combined with:

- Structured entry
- Strong contractual architecture
- Clear title verification
- External dispute resolution mechanisms

Layered mitigation reduces aggregate risk exposure and enhances bankability.

¹⁷ James J Waters, 'A comparative analysis of public and private political risk insurance policies with strategic applications for risk mitigation' (2014) 25 Duke J Comp & Int'l L 361

6. Conclusion

Iran presents a paradox typical of transitional economies: substantial structural economic opportunity coexisting with elevated institutional and legal uncertainty.

The scale of potential market reopening—particularly in energy, infrastructure, industrial manufacturing, and capital-intensive sectors—may attract early strategic entrants. However, transitional volatility is neither incidental nor temporary; it is structurally embedded in the reconstitution of governance systems.

Investment success in such environments does not depend on speculative timing. It depends on disciplined legal architecture. This is particularly relevant for first-mover market entrants and mid-market foreign investors, whose exposure to transitional uncertainty may be disproportionately amplified by limited local institutional familiarity and reduced internal legal capacity.

Structured legal due diligence—grounded in institutional analysis, risk domain mapping, and calibrated capital deployment—enables investors to convert uncertainty into measurable exposure. When risk is systematically assessed, it becomes priceable. When it is priceable, it becomes manageable.

The Iran Transitional Legal Risk Framework™ offers a structured methodology for evaluating transitional exposure across institutional stability, regulatory volatility, title certainty, enforcement predictability, and legacy risk.

Investors who approach transitional markets with methodological rigor rather than speculative optimism are more likely to achieve sustainable outcomes. In periods of systemic transformation, prudence and structure outperform speed.

Transitional volatility rewards preparation. Durable investment performance follows disciplined entry design.

About the author

Mostapha Maddahinasab, Ph.D. is a legal scholar specializing in investment law, energy law, and transitional regulatory risk. His academic and professional work focuses on the intersection of foreign investment, institutional change, and regulatory governance in emerging and transition markets.

Dr. Maddahinasab obtained his Ph.D. in Oil and Gas Law from the University of Tehran and conducted doctoral research at the University of Zürich with the support of the Mercator Foundation, Switzerland. He subsequently pursued postdoctoral research at Ruhr University Bochum under the sponsorship of the Alexander von Humboldt Foundation, Germany.

His research has focused extensively on international investment law, energy governance, legal risk assessment, and the regulatory dimensions of foreign market entry. Through *Maddahinasab Legal Advisory*, he develops analytical frameworks and legal risk methodologies designed to assist investors, commercial actors, and market participants in evaluating legal uncertainty in transitional and institutionally volatile environments.

For academic publications, legal commentary, and research insights, please visit:

Website

www.maddahinasab.com

Email

maddahinasab@hotmail.com

LinkedIn

www.linkedin.com/in/mostapha-maddahinasab-28107692

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